

1 ENGROSSED SENATE
2 BILL NO. 1250

By: Hamilton, Jett, Standridge,
Alvord, Bullard, Prieto,
Burns, McIntosh, Guthrie,
and Sacchieri of the Senate

4 and

5 Banning of the House

6
7 An Act relating to schools; defining terms; requiring
8 each school district and charter school to submit to
9 the State Department of Education certain listing
10 annually by certain date; allowing submission of
11 certain attestation; prohibiting certain materials
12 and content from being accessible to certain
13 students; providing certain construction; providing
14 process for reporting suspected violations; providing
15 for contents of report; providing for investigation;
16 providing for certain notification regarding
17 investigation findings; allowing an appeal of
18 investigation findings to the State Department of
19 Education; providing for contents of appeal;
20 requiring certain investigation and notification of
21 investigation findings; allowing a school district or
22 charter school to request certain hearing within
23 certain time period; directing the State Board of
24 Education to review certain information and vote on
certain determination; authorizing certain
designation of a school for certain noncompliance;
providing certain penalty for noncompliance;
providing for promulgation of rules; providing for
codification; providing an effective date; and
declaring an emergency.

21 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

22 SECTION 1. NEW LAW A new section of law to be codified
23 in the Oklahoma Statutes as Section 11-203 of Title 70, unless there
24 is created a duplication in numbering, reads as follows:

1 A. As used in this section:

2 1. "Harmful to minors" has the same meaning as provided in
3 Section 1040.75 of Title 21 of the Oklahoma Statutes;

4 2. "Library" means a school library, media program, classroom
5 library, or any other collection of books or other materials, print
6 or digital, that are maintained by a school district or charter
7 school or its employees for use by students and that do not qualify
8 as textbooks approved by the State Textbook Committee pursuant to
9 Sections 16-101 through 16-124 of Title 70 of the Oklahoma Statutes;

10 3. "Nudity" has the same meaning as provided in Section 1040.75
11 of Title 21 of the Oklahoma Statutes;

12 4. "Obscene" has the same meaning as provided in Section 1024.1
13 of Title 21 of the Oklahoma Statutes;

14 5. "School library" means the library maintained by a school
15 district or charter school for use by students; and

16 6. "Sexually explicit content" means any communication,
17 language, or material including a written description, illustration,
18 photographic image, video image, or audio file that describes,
19 depicts, or portrays actual or simulated sexual intercourse, deviate
20 sexual intercourse, rape, sexual bestiality, masturbation, sado-
21 masochistic abuse, incest, molestation, necrophilia, or lewd
22 exhibition of the genitals, anus, or any portion of the female
23 breast below the top of the areola.

1 B. By October 1, 2026, and by every October 1 thereafter, each
2 school district and charter school shall submit to the State
3 Department of Education a complete listing of all books and other
4 materials available in its school library. To fulfill the
5 requirement of this subsection, a school district or charter school
6 superintendent may submit an attestation that the public online
7 school library catalog or catalogs contain a complete and accurate
8 list of books and other materials accompanied by the website for
9 accessing the relevant catalog or catalogs.

10 C. A library in a school district or charter school shall be
11 prohibited from having any materials containing or depicting obscene
12 material, sexually explicit content, nudity, or material that is
13 harmful to minors.

14 D. Nothing in this section shall prohibit a student from
15 reading, owning, possessing, or discussing any book obtained without
16 the assistance or encouragement of a school district or charter
17 school, its employees, or its libraries; provided, however, nothing
18 in this section shall be construed to allow a student to bring
19 materials containing or depicting obscene material, sexually
20 explicit content, nudity, or material that is harmful to minors on
21 the grounds of a school district or charter school.

22 E. 1. The parent or legal guardian of a student enrolled in a
23 school district or charter school may report suspected violations of
24 the provisions of this section to the school district board of

1 education or the charter school governing body. The report shall
2 include a written complaint summarizing the alleged violation
3 including the time, date, and location of the alleged violation and
4 the identity of any person involved.

5 2. Within fourteen (14) business days of receiving a report
6 pursuant to this subsection, the school district board of education
7 or charter school governing body shall conduct an investigation to
8 determine whether a violation occurred. The school district board
9 of education or charter school governing body shall notify the
10 parent or legal guardian who submitted the report of the findings of
11 the investigation.

12 3. A parent or legal guardian who submits a report pursuant to
13 this subsection may appeal the findings of the school district board
14 of education or charter school governing body to the State
15 Department of Education. The appeal shall include a copy of the
16 report submitted to the school district board of education or
17 charter school governing body pursuant to paragraph 1 of this
18 subsection and the investigation findings reported pursuant to
19 paragraph 2 of this subsection. The State Department of Education
20 shall conduct an investigation to determine whether a violation
21 occurred. The Department shall notify the parent or legal guardian
22 who submitted the report and the school district or charter school
23 of the findings of the investigation.

1 4. If the Department determines a violation occurred, the
2 school district or charter school shall have fourteen (14) business
3 days to request a hearing before the State Board of Education. The
4 Board shall review the alleged violation, the findings of the
5 Department's investigation, and the response from the school
6 district or charter school and vote on whether to uphold the
7 Department's determination.

8 5. If the State Board of Education votes to uphold the State
9 Department of Education's determination, the Board is authorized to
10 report a school district or charter school as deficient on the
11 accreditation report for noncompliance with the provisions of this
12 section. Upon a finding of noncompliance with the provisions of
13 subsections B and C of this section by the State Board of Education,
14 the noncompliant school district or charter school shall receive a
15 five-percent reduction in state funding for the fiscal year
16 following the fiscal year of noncompliance.

17 F. The State Board of Education shall promulgate rules to
18 implement the provisions of this section.

19 SECTION 2. This act shall become effective July 1, 2026.

20 SECTION 3. It being immediately necessary for the preservation
21 of the public peace, health, or safety, an emergency is hereby
22 declared to exist, by reason whereof this act shall take effect and
23 be in full force from and after its passage and approval.
24

1 Passed the Senate the 11th day of March, 2026.

2
3 _____
4 Presiding Officer of the Senate

5 Passed the House of Representatives the ____ day of _____,
6 2026.

7
8 _____
9 Presiding Officer of the House
10 of Representatives